APPENDIX 'A' TO NOTICE INVITING TENDER (NIT)

1.	Name of work	**PROVN OF THREE SINGLE OFFRS ACCN AT ARMY AIR DEFENCE OFFICERS MESS, 8 PARADE ROAD UNDER GE (EAST) DELHI CANTT-10**
2.	Estimated Cost of Work	Rs 43.52 Lakhs
3.	Cost of tender documents	Rs 500/- in the form of DD / Bankers cheque from any Scheduled/ Nationalised bank in favour of **GE (East) Delhi Cantt-10** and payable at **Delhi Cantt-10**
4.	Period of completion	**04 (Four)** months
5.	Website/portal address	https://defproc.gov.in
6.	Type of Contract	The tender shall be Item rate on IAFW-2249 with list of works to be priced by tenderer. The tenderers are required to quote their rates against items of list of works.
7.	Timeline Details:-	
(a)	Bid submission start date	Refer critical dates on website.
(b)	Bid submission end date	
(c)	Date of bid opening	
8.	Eligibility Criteria:-	
	(a) For MES enlisted contractors	Contractors shall be enlisted with MES in Class **'D'** and above and category **a (i)** subject to satisfactory remarks wrt performance in respect of works in hand as reflected in WLR or any other report circulated by any competent engineer authority.
	(b) For other Contractors	(i) The firm not enlisted with MES shall meet the enlistment criteria of class **'D'** and category **a (i)** i.e with regard to having satisfactory completion of requisite value works with Central/ State Government, / Central/ State PSUs/ AWHO/ AFNHB/ CGEWHO/ DGMAP, Annual turnover, Bank Solvency, working capital, and other requirements given in Para 1.4 & 1.5 of Section 1 of MES Manual on Contracts -2020 as available in all MES formations as well as MES website (www.mes.gov.in). (ii) Not carrying adverse remarks in Work Load Report (WLR) or any other similar report circulated by any competent authority, if already working in MES. (iii) Not suspended/debarred/blacklisted (either permanently or temporarily) from participating in any bid or for business dealings by any Central/State Government department or any Central/State Government PSU or any Autonomous Body under Central/State Government or any Local Body as on bid submission end date. (iv) Details of works completed and under progress in MES be submitted in the following format:-

Srl No	CA No & Name of Work	Value of CA	Date of Commencement	Date of Completion	Extended Date of Completion

(v) Un-enlisted Contractor who have secured two works in MES should get themselves registered in the appropriate designated Class with any Registering Authority, else the firm will not be eligible for participation in the tender unless until the firm is enlisted with MES.

9.	Tender issuing authority and Accepting Officer and contact details	**GE (East) Delhi Cantt.-10, email id- edcntdz4-mes.nic.in, Contact No.011-20892445**
10.	Executive Agency	**GE (East) Delhi Cantt-10**
11.	Earnest Money	**Rs. 87040/-** in form of Deposit Call Receipt or Receipted Treasury Challan from any Scheduled/ **Nationalized** bank in favour of **GE (East) Delhi Cantt-10**

APPENDIX 'A' TO NOTICE INVITING TENDER (NIT)

NOTES :-

1. In case after opening of Cover 1, if the number of MES enlisted contractors of eligible class as well as un-enlisted contractors, if any, fulfilling the other eligibility criteria given in NIT are less than 7 (Seven), applications in respect of contractors one class below the eligible class shall also be considered subject to fulfillment of other eligibility criteria given in the NIT. Therefore MES contractors one class below may also bid for this tender. Such contractors shall not be considered in case their present residual work in hand is more than five times their present tendering limit. However in case such contractors fulfill the criteria of upgradation to the stipulated eligible class based on past experience of completed works (individual work experience and/ or average annual turnover, as applicable) and financial soundness (solvency/financial soundness) and working capital), the ceiling of present residual work will not apply and they will be considered for issue of tender. Such contractors shall upload in their Cover-1 bid details of works in hand showing names of work names of Accepting Officers, Contract amounts, dates of commencement and completion (stipulated) and progress as on bid submission date. Such contractors, if claim to fulfill the criteria of upgradation shall also upload the requisite information/documents in support of upgradation. These details shall be verified by the Tender Issuing Authority from concerned formations in case bids of such contractors are considered for evaluation.

2. In case after opening of Cover 1, the number of MES enlisted contractors of eligible class as well as un-enlisted contractors, if any, fulfilling the other eligibility criteria given in NIT, are 7 (Seven) or more, applications of only those one class below the eligible class bidders shall be considered, who have previously completed similar works satisfactorily and are meeting the criteria of upgrading in respect of past experience of completed works (individual work experience and/or average annual turnover as applicable) and financial soundness (solvency/financial soundness and working capital) as per details given in Manual on Contracts. Therefore such contractors shall upload the requisite information/documents in the Cover-1.

3. Unenlisted contractors shall be considered provided he meets the criteria. Foreign firms shall not be eligible for this tender. However Indian Firms having foreign national/ Indian nationals staying abroad / Indian national having taken foreign citizenship, as directors (s) shall be considered subject to security clearance from the concerned authorities.

4. Contractors enlisted with MES will upload following documents in Cover I for checking eligibility.

(a) Application for tender on Firm's letterhead.

(b) Enlistment letter issued by the Registering Authority duly renewed for the cycle period in vogue.

(c) Scanned copy of DD/Bankers Cheque towards cost of tender and EMD instrument in case SSD bond is not signed at the time of registration.

(d) Scanned copy of GST registration number.

(e) Scanned copy of EPF registration number.

(f) Any other documents required as described in this Appendix.

5. Contractors not enlisted with MES will be required to upload following documents in Cover I for checking eligibility.

(a) Application for tender on Firm's letterhead.

(b) Scanned copy of DD/Bankers cheque toward cost of tender and Earnest Money Deposit (EMD) instrument.

(c) Copy of Police Verification Report/Police Clearance Certificate/Character Certificate from the Police Authority of the area where the registered office of the firm is located/notarized copy of valid passport of Proprietor/each Partner/each Director.

(d) Scanned copy of GST registration number.

(e) Scanned copy of EPF registration number.

(f) All documents required for enlistment in MES for the class mentioned in Para 8(b) above as per Para 1.4 of section I of MES Manual on Contracts 2020.

(g) Details of works being executed in MES, if any.

(h) Any other documents required as described in this Appendix.

APPENDIX 'A' TO NOTICE INVITING TENDER (NIT)

6. Tenders not accompanied by scanned copies of requisite DD/Bankers Cheque towards cost of tender and earnest money (as applicable) in Cover I shall not be considered for validation of 'T' bid and their Financial Bids will not be opened.

7. Contractors should ensure that their original physical DDs and Earnest Money Deposit (EMD) instruments (as applicable) reach the office of Accepting Officer within **07 (Seven)** days of bid submission end date failing which following action shall be taken.

(a) In case of tenders from and enlisted contractors of MES, where scanned copies of requisite DD/Bankers Cheque towards cost of tender have been uploaded in Cover I but physical copies are not received within the stipulated period, their financial bids (Cover 2) will be opened. However non-submission of physical copies of cost of tender shall be considered as willful negligence of the tenderer with ulterior motives and such tenderer shall be banned from bidding for a period of six months commencing from the date of opening of Financial Bid (Cover 2).

(b) In case of tenders from un-enlisted contractor, where scanned copies of requisite DD/Bankers Cheque towards cost of tender have been uploaded in Cover I but physical copies are not received within the stipulated period, their financial bids (Cover 2) will not be opened. Named of such contractors along with complete address shall be circulated for not opening of their bids for a period of six months commencing from the date of opening of Financial bid (Cover 2).

(c) In case of tenders from enlisted and un-enlisted contractors, where scanned copies of instruments for Earnest Money Deposit (as applicable) have been uploaded in Cover-1 but the same are not received in physical form within stipulated period, such tenders shall not qualify for opening of financial bid (Cover-2).

8. Contractor will not be allowed to execute the work by subletting or through power of attorney to a third party/another firm on his behalf. However a contractor can execute the work through power of attorney to sons/daughters/spouse of Proprietor/Partner/Director and firm's own employees, director, project manager provided they are not having a separate enlisted firm in MES in their name as Proprietor/Partner/Director.

9. After opening of Cover 1 and during its technical evaluation, in case any deficiency is noticed in the documents required to be uploaded by the tenderers as per NIT, as communication in the form of e-mail/SMS/Speed Post etc shall be sent to the contractor to rectify the deficiency within a period of seven days from date of communication failing which their financial bid (Cover 2) shall be opened and contractor shall have any claim on the same.

10. Invitation for e-tender does not constitute any guarantee for validation of Technical bid and subsequent opening of financial bid of any applicant/bidder merely by virtue of enclosing DD. Accepting Officer reserves the right to reject the Technical bid and not to open the financial bid of any applicant/bidder. Technical bid validation shall be decided by the Accepting Officers based on eligibility of the firm as per criteria given in this Appendix. Tenderer/bidder will be informed regarding no-validation of his Technical bid assigning reasons therefore through tender evaluation report which shall be uploaded on the website. Such tenderer, if desires, may appeal to the next higher Engineer Authority (NHEA) viz **CWE Delhi Cantt. on email id dcntdz3- mes@nic.in** with copy to the Accepting Officer on email before the scheduled date of opening of Cover 2. NHEA shall decide the matter within a period of seven working days from the date of receipt of appeal. The decision of the NHEA shall be final and binding. The tenderer/bidder shall not be entitled for any compensation whatsoever for rejection of his bid.

11. In case an un-enlisted contractor is already executing works in MES, he shall not be considered eligible for the subject tender if the total value of such works is more than twice the tendering limit of the MES class of contractor for which it is eligible. For this purpose details of the works being executed by such a contractor shall be uploaded in the Cover-1 of the bid and shall be checked/verified by the Accepting Officer.

12. In case the BOQ is revised through the corrigendum and the bidder has failed to quote on revised BOQ (i.e he has quoted on pre revised BOQ), such bid shall be treated as willful negligence by the bidder and his quotation shall be considered non-bonafide. In such cases the lowest tender shall be determined from amongst the valid/bonafide bids only. Accepting Officer may decide whether to re-tender or consider the lowest bonafide tender for acceptance.

APPENDIX 'A' TO NOTICE INVITING TENDER (NIT)

13. Revoking the offer or revising the rates upward or offering voluntary reduction by the lowest tenderer after opening of Cover 2 shall be considered as a willful default. For this default a penalty of an amount equal to Earnest Money shall be levied. In case of an un-enlisted tenderer, Earnest Money deposited by him shall be forfeited. In case of MES enlisted tenderer having deposited the Standing Security Bond, an amount equal to the earnest money stipulated in the NIT, shall be notified to the tenderer for depositing through MRO and consideration of such tenderer in tender evaluation for future works shall remain suspended till the aforementioned amount is deposited in the Government Treasury. No other disciplinary/administrative action shall be taken against such tenderers. In such a situation, the next lowest offer shall not be considered for acceptance, instead, retendering shall be resorted to in a transparent and fair manner and the defaulting tenderer and his related firm if any, shall not be eligible for this tender in second call or subsequent calls.

14. Tender to related firms shall not be issued simultaneously. Firms shall be termed as related if Proprietor/ one or more Partners/ Directors are common, Decision of Accepting Officer on issue/deny the tender to any one of the related firms shall be final and binding.

Sig of Contractor

AGE (Contracts)
for Accepting Officer

File No 8100/DE-100/24-25/05/E8
Garrison Engineer (East)
Delhi Cantt-10
25 Nov 2024

Signature Not Verified

Digitally signed by GIRISH CHANDRA JOSHI
Date: 2024.11.25 13:55:43 IST
Location: Ministry of Defence-MES